EMPLOYMENT CUM CONFIDENTIALITY AGREEMENT

This EMPLOYMENT AGREEMENT (hereinafter referred to as the "Agreement") is entered into on 20 Mar, 2026.

BY AND BETWEEN

Swan Capital, a firm duly incorporated under the provisions of Partnership act 1932, bearing GST Identification Number: 27ADEFS1145N1ZS and having its Registered office in 203,Floor-2 Hamam House, Hamam House Road , Ambalal Doshi Marg , Bombay Stock Exchange , Mumbai State: Maharashtra PIN Code: 400001 and Operational Office Address in, 2nd Floor, Block 28, Tree Building, Raghuvanshi Mills Compound, Lower Parel West, Mumbai, Maharashtra, 400013.(hereinafter referred to as **"firm"** " (which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors-in-business, affiliates and assigns) of the **FIRST PART**;

And

Caleb Felix residing at A-303 Rachaita Aarambh, Near Udipi Hotel & Charbhuja jewellers, Aarey Road, Goregaon (East) Mumbai 400063.,, ,India (hereinafter referred to as the "Employee" (which expression shall, unless it be repugnant to the subject context or meaning thereof, include his successors, legal heir, executors and assignees) of the

OTHER PART;

THE firm and the **EMPLOYEE** shall hereinafter be referred to as such or collectively as "**Parties**" and individually as the "**Party**".

WHEREAS,

The firm is engaged in the business of (A) providing quantitative research-driven investment strategies, portfolio management services, and advisory solutions, with a focus on data analytics, algorithmic models, and systematic trading frameworks across multiple asset classes (B) such other related business activities as may be carried out by the firm during the term of the Agreement ("Business").Based on the disclosures and representations made by The Employee, including, but not limited to, academic education,

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background and work experience, the firm desires to engage the Employee; and theEmployee desires employment at the firm; upon the terms and conditions obtained in this Agreement and the firm's Policies (as defined hereinafter).

The firm procures information from time to time from their vast exchange network and asserts that such information is highly confidential and is a valuable, special, and unique asset of the firm. Hence, as a condition precedent to commencement of employment, the firm requires the Employee to maintain confidentiality of the information to be shared with her under such terms and conditions provided herein below:

IN CONSIDERATION OF and as a condition of, The firm employing the Employee and the firm providing the Confidential Information to the Employee in additionto other valuable consideration, the receipt and sufficiency of which consideration is hereby acknowledged, the parties to this Agreement agree as follows:

DEFINITIONS

In this Agreement the following words have definitions as set out below:

"**Confidential Information**" means, trade secrets, know how, patents, utility models, formulations, process/methods of preparation, test data, conducted in- house or by/through collaborative/ventures efforts, inclusive of any and all improvements/modifications, alterations substantial or otherwise etc., that may have been effected to be said confidential information by the firm. Any information arises out of the models and research done by the firm through Quantitative Analysis, Quantitative Trading, Quantitative Trading Module, or Algorithms will have said to be Confidential Information of the firm. Any information relating to the firm or its business that is not generally known to public, including, but not limited to information about firm's Personnel, products, customers, services or future business plans. Also as used in this Agreement "confidential information" means all information provided by the firm including but not limited to firm details, documents, data, business/ customer/employee information and the firm's practices and trade secrets, research reports, source codes, modelling or pricing formulas; calculation's; object codes; run-time libraries; system documentation; system configuration; hardware designs; firmware designs; and or operations of firm's trading systems, methods, terminology to the Employee or its agents

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and representatives regardless of whether the information is provided through anymedium such as written oral, audio tapes, video tapes, computer discs, machines, prototypes, designs, specifications, articles of manufacture, drawings, human or machine readable documents

"**Intellectual Property**" means and includes existing and future Intellectual Property in the nature of registered or unregistered rights to any and all patents, copyrights, trademarks, and other confidential and/or proprietary information limited to that forming part of the subject-matter of the Agreement, and inclusive of all intellectual property that is subject to the ownership by the firm and/or its subsidiaries, venture partners and predecessors in interest, business and/or title, arising out of the performance of this Agreement and/or other business Agreements, inclusive of but not limited to any oral arrangement which firm may have entered into with the party or other party.

"Competitive Activity" shall mean any business or other endeavor that engages in any country in which the firm has significant business operations, as of the date of Termination of this Agreement, to a significant degree in a business that directly competes with all or any substantial part like High- Frequency Trading and Quantitative Trading of any firm's business including Investment Banks, Banks, HFT/MFT Firms or anything falling within the ambit of the firm's scope/areas of operations.

"Customized Software" means software developed specifically for Swan Capital based on the trading practice of the firm.

"Method' means the series of steps taken by the firm pertaining to the conduct of their business or for the development of their business software. In object-oriented programming, a method is a programmed procedure that is defined as a part of a class and included in any object of that class.

"**Object code"** means a file containing a sequence of instructions that the processor can understand.

"Research Report" is a detailed report, created or compiled by or on behalf of the firm, dealing with a topic pertaining to the business of the firm.

"Runtime Library" is a special program library used by a compiler, to implement functions built into a programming language, during the runtime (execution) of a computer

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program. This often includes functions for input and output, memory management or mathematical functions

"Software" means, as the context may require, source or object code instructions for controlling the operation of a central processing unit or computer, and computer files containing data or text.

"**Software Product**" means a collection of computer files containing Software in object code form only, which, taken together, reasonably comprise a product, regardless of whether such product is intended for internal use or commercial exploitation. A single computer file can comprise a software Product.

"**Source Code**" means the Software contained in compressed form in the Capsule.

"**System Configuration**" defines the computers, processes, and devices that compose the system and its boundaries.

"**Hardware Designs**" is the design engineering task of producing a component of computer hardware.

"**Firmware Design**" means a program that is stored in a read only memory specifically for Swan Capital

"Personal Data" means all data and other information about or pertaining to the firm, its Employees or any other individuals who are clients of the firm which is processed by the Employee in connection with the provision of the Services, whether such data or information is in oral, visual or written form or is recorded in any other medium;

"Quantitative Models" means a practice of organizing and interpreting firm data sets with mathematical formulas to identify trends in the markets for the firm.

"Quantitative Alpha" means quantitative research and development using firm Data and resources as Quantitative Indicator Classes Structured together for the firm.

"Market Making Algorithms" means coding used by the firm in order to frame structures in providing Liquidity to the market.

"Execution Logic" means a set piece of code designed for the firm to execute various kinds of orders in the Market.

"Risk Management Modules" means models prepared for the firm in order to supervise heavy risks from potential adverse consequences.

Important: While Qode is our brand, your employment is with Swan Capital, the registered entity.

"**Inventory Management Models**" means trading portfolios developed with the purpose of efficient management of various firm assets.

Headings are used for Convenience only and shall not affect th interpretation of this Agreement.

Reference to the singular includes a reference to the plural and vice versa, and reference to any gender includes a reference to all other genders.

Reference to an individual shall include his legal representative, successor, legal heir, executor and administrator.

In this Agreement, references to the recitals or clauses shall deem to be a reference to the recitals or clauses of this Agreement.

NO CONFLICTS WITH PRIOR EMPLOYMENT

The Employee affirms that his/her employment with the firm shall not conflictwith any obligations, which he/she may have towards her former employers or any other persons. The Employee specifically represents that he/she has not brought to the firm, and shall not bring to the firm, any material or documents of a former employer, or any confidential information or property of a former employer.

EMPLOYMENT

The firm hereby engages the services of the Employee to carry out activities pertaining to Augmenting, improving, redesigning, and/or re-implementing Swan Capital's low latency/high throughput production trading environment, which collects data from and disseminates orders to exchanges around the world ("Services").The appointment of the employee is subject to the acceptance by the Employee of the existing service conditions of the company and any amendments thereto that may be brought into force from time to time thereafter.

Your employment shall be governed by the Company's Employee Handbook, Code of Conduct, HR and administrative policies, confidentiality obligations, and all other policies as may be introduced or modified from time to time.

POSITION

During the employment, the employee shall serve as **"Junior Software Developer".** The employee agrees to commensurate with the position and duties of the role as the firm

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determines. During the term of his employment, the Employee promises to devote his best efforts, and shall perform and discharge well and faithfully the duties which may be assigned to her from time to time by the firm in connection with the conduct of its business.

COMMENCEMENT

This agreement shall commence on **20 Mar, 2026.** (retrospective date) and shall continue to subsist until the date of termination of this agreement.

6. EXCLUSIVITY

The employee undertakes and accepts that he has been employed to work exclusively for the firm and shall not, during the Term of this agreement, undertake employment, whether full time or part- time, as a Director, Partner, member, advisor or Employee of the organization or entity engaged in any form of business activity. The employee shall be required to work on the various projects assigned by the firm from time to time during the Term of this Agreement. Further, the firm may, at its sole discretion, assign such other projects to the Employee as it may deem fit.

7. PROBATION

The employee shall be on a probation for a period of 03 months from the date of joining the employment.

On the completion of 3 months' probationary period with the firm the employee shall be deemed to be confirmed as a permanent employee. In case of extension of the period of probation the firm shall inform the same in writing at least 15 days prior to the end of the probation date.

During the period of probation, the firm reserves the right to dispense with the Employee's Services, without assigning any reason. Similarly, the Employee may resign during the period of probation giving 02 months' notice in writing to the Employer.During probation period you will not be entitled to any leaves; if taken any it will be counted as LOP (Loss of Pay).

8. REMUNERATION AND PREQUISITES

Subject to the provisions of the Agreement, during the Employment Period, the employee shall be compensated for his services.The employee shall receive annual salary, payable

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in monthly installments, as per the convenience of the Employer, an amount of **INR 9,00,000.00 (INR Nine Lakh Rupees)**, subject to increases from time to time, as determined by the Employer. Such payments shall be subject to such normal statutory deductions by the Employer.

During the term of this agreement, the employee's salary shall be paid by means of bank transfers, cheque, or any other method convenient to the Employer, on the first working day of each calendar month, or the immediately succeeding working day if such day falls on a non-working day or public holiday.

All reasonable expenses arising out of employment shall be reimbursed assuming that the same have been authorized prior to being incurred and with the provisions of the appropriate receipts.

Salary Structure

EARNINGS (PART - A)	MONTHLY (INR)	YEARLY (INR)
Basic	45,000.00	5,40,000.00
HRA	22,500.00	2,70,000.00
Special Allowance	7,500.00	90,000.00
TOTAL SALARY (A)	75,000.00	9,00,000.00
OTHERS (PART - B)	**MONTHLY (INR)**	**YEARLY (INR)**
PF - Employer	1,800.00	21,600.00
SUB-TOTAL (B)	1,800.00	21,600.00
TOTAL (A + B)	76,800.00	9,21,600.00
DEDUCTIONS (PART - C)	**MONTHLY (INR)**	**YEARLY (INR)**
PF Employee	1,800.00	21,600.00
SUB-TOTAL (C)	1,800.00	21,600.00

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NET PAY (A - C)	**73,200.00**	**8,78,400.00**

Professional Tax (PT) – ₹200 will be deducted as per applicable state statutory norms.

9. LEAVE POLICY

The Employee is entitled to Twenty Leaves (20 days) of Paid leave in a year, including 6 days of sick leave 14 days of privilege leaves year. In addition, to the festival and gazette holidays as per the financial year of the firm.

If the Employee joins the Company at any time after the start of the leave-year, the annual leave entitlement for that year will be credited on a pro-rata basis, based on the portion of the year remaining.

The Employee can carry forward upto 5 Privilege leaves but cannot encash the paid leaves to the next holiday year.

In the event that the Employee is absent from work due to sickness/injury, he/she will follow the Leave Policy and inform the designated person as soon as possible.

If the Employee is absent from work due to sickness or injury for more than three (3) consecutive days he/she must submit to the firm a medical certificate from his/her doctor.

10. INTELLECTUAL PROPERTY RIGHTS

The employee acknowledged that due to the nature of the Project, any intellectual Rights arising out of and in course of developing the products by the Employee and the portion thereof, including all derivative works thereof completed prior to the termination of this Agreement shall vests with the Employer.

Any invention, improvements or design conceived by the Employee while in course of his employment, which is within the existing or contemplated scope of the Project, shall become exclusive property of the Employer.

The employee shall make all efforts to protect the Intellectual Property Rights belonging to the Employer in connection with the execution and performance under this agreement, the Employee shall not knowingly infringe any patent, copyright, trade secret, mask work right or any other proprietary right of any third party. Employee shall have no rights to use any of the firm's pre-existing documents, methodologies, manuals, models, generic

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designs, ancillary equipment, software and all other pre-existing materials, except in the performance of services hereunder.

11. INCIDENTAL AND ANCILLARY AGREEMENTS

The employee will be required to execute the incidental and ancillary agreements like the Non- Disclosure Agreement, Non- Compete Agreement, etc., as the Employer may require, simultaneously with the execution of this Agreement.

12. CONFIDENTIAL INFORMATION

The employee shall keep confidential information, both during the continuance of this Agreement and after its termination, any know-how or other information supplied to him/her by the firm or its Affiliates and which the firm either designates as being confidential at the time it is supplied or which should, by its nature or on normal business principles, be considered confidential.

The employee shall not, except with prior written consent of the firm: Copy, duplicate, remove from the premises of the firm, or permit any other person to copy, duplicate or remove from the premises of the firm, any of the firm's confidential information.

Disclose to any other person or entity any of the firm's confidential information.

Disclose or share any employee data within or outside the firm.

Sell or otherwise distribute to any person or entity any versions of the firm's confidential information.

Use any of the firm's confidential information to create, overwrite, modify, interpret, analyses, repair, replace, project, or correlate any other person's or entity's data, machinery, software, firmware or other information or assets

The employee shall not use any such confidential information for any purpose whatsoever other than in the course of discharging his/her Services in accordance with this Agreement and for the purposes for which the confidential information was provided.

The obligations in this clause shall continue to have effect after the termination of this Agreement and shall continue to be binding on the Employee so long as such information does not become generally available to the public.

The firm acknowledges that it is not making any express or implied representation or warranty as to the accuracy or completeness of the information.

Important: While Qode is our brand, your employment is with Swan Capital, the registered entity.

The employee agrees to accept and sign the detailed conditions mentioned in **Annexure - A** (Non-disclosure Agreement), as a part of this agreement. The employee shall maintain the secrecy of the said document.

13. Non-Compete & Non-Solicitation

For 12 (twelve) months after termination, the Employee shall not engage in or be associated with any competing business in areas related to their role or where they had access to Company information. The Employee shall also not, during employment or at any time thereafter, directly or indirectly solicit or attempt to hire any employee, intern, consultant, vendor, client, investor, or business partner of the Company known through their employment. These restrictions protect the Company's confidential information and relationships.

14. Purpose & Commitment

These terms are standard across the industry and reflect our commitment to a secure and professional workplace. They protect the intellectual property, data systems, and client trust that you help build at Swan Capital.

They do not prevent you from pursuing a long-term career, and we encourage open discussion should any future opportunity require clarification.

15. INDEMNITY

15.1. The employee indemnifies and shall keep the firm indemnified from and against all costs, claims, losses, damages, demands, liabilities, causes of action, proceedings, awards or judgments incurred by or brought or made against the firm to the extent that they were caused by or contributed to by;

Any willful negligent act or omission of the Employee or her executors and administrators.

Or any willful misconduct, negligence, act or omission of the Employee or his/her executors and administrators to the extent that such conduct causes damage to or loss of the employees, agents, executives, clients, equipment of property belonging to the firm.

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Any injury, damage or death caused by any reason whatsoever to its agents and representatives during the performance of Services under this Agreement whether or not such injury, damage or death may be occurred in the premises of the firm.

15.2.Notwithstanding any provisions of this agreement to the contrary, neither Party shall be liable to the other Party in respect of any consequential or economic loss or damage (whether or not foreseeable at the date of this Agreement and whether or not arising out of the negligence of either party) that may arise out of the performance of or breach of this Agreement including but not limited to loss of profits, loss of trade and business interruption.

16. TERMINATION

16.1 PROBATION

During the period of probation, if the firm is not satisfied with the services of the employee, the firm shall have the right to dispense with the Employee's Services, without assigning any reason, Similarly, the Employee may resign during the period of probation giving 02 months' notice in writing to the Employer.

Upon successful completion of probation the employee may terminate the agreement by giving notice 3 months prior to the date of termination. Upon your resignation, the firm reserves the right to withhold your salary during the notice period for up to two months prior to your date of exit. After your departure from the firm you will be bound by non-poach, provisions which includes non-poaching of Swan Capital. Staff and competitors for one year after your departure. On successful completion of the handover process, you will be entitled to Full and Final settlement and experience letter. The sign-off will be done by us for the same within 7 days. Any damage caused to any of the firm assets will be deducted from your full and final settlement.

Notwithstanding anything in contrary contained herein, the firm shall be entitled to forthwith terminate the appointment without any prior notice or payment of any kind whatsoever in lieu of notice or otherwise in case of: Any act of dishonesty, disobedience, insubordination incivility, intemperance, irregularity in attendance or other misconduct or neglect of duty, or incompetence in the discharge of service on the part of the Employee or being found guilty by a competent court of any offense involving moral turpitude or

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breach of any terms, conditions and stipulations contained herein. The reconstruction or amalgamation of the firm whether by winding up of the firm or otherwise. Willful and continued failure of material obligations on the part of the Employee to perform his/her Services (other than such failure resulting from the Employee's Incapacity due to Physical or mental illness") within ten business days after the firm delivers to him/her a written demand of performance that specifically identifies the actions to be performed.

17. POST TERMINATION PROVISIONS

17.1 In the event of the termination of this Agreement, howsoever arising, in order to Protect the Employer 's intellectual property rights and reputation, the Employee shall forthwith return to the Employer the Products developed either fully or partly and all Manuals, stationery and signs bearing the Marks then in its possession whether or not supplied by the Employer. The Employee shall not at any time thereafter:

17.2 Disclose or use any confidential information or Know-how related to the business acquired by him during or as a result of this Agreement (save that it shall be allowed to use such know-how that has come into the public domain by means other than the Employee's breach). Make any use of the Marks or source codes used by or in the name of the firm. Purport to be an Employee of or otherwise associated with the Employer. Use any recommendation or reference provided as a result of its work as an Employee. If the Employee is found defaming the firm in any way on social media or any platform on the internet, he/she will be liable for exemplary damages, for deforming the goodwill and the name of The Swan Capital Group.

Upon termination of this agreement the employer shall promptly pay the employee for any remuneration due, accrued and payable up to the date of termination. In case of breach of any clause within the agreement, the employer may hold back any dues or Full and Final Settlement at the discretion of the firm. The firm can also initiate civil and criminal proceedings against the Employee in case of any breach.

18. DATA THEFT

18.1. The Employee agrees to acknowledge that all rights, titles and interests in firm Data will remain the property of the firm. The Employee will have no Intellectual Property Rights or other claims to the firm data or models or inventions or research that is hosted,

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stored, or transferred to and from the products or the cloud services platform provided by the firm, or the firm's confidential information. The Employee will cooperate with the firm to protect the firm's confidential information. The Employee will promptly notify the firm if becomes aware of any potential infringement of those rights in accordance with the provisions of the said Agreement.

18.2. It will be the duty of the Employee to take due permissions and authorization from the firm before using and disseminating any personal data or confidential information of the firm.

18.3. The Employee is prohibited in indulging in any act without the permission of the firm from firm's computer, computer system or computer network including firm's information by:

18.3.1. Accessing or securing access to firm's computer, computer system or computer network:

18.3.2. Downloading, copying, or extracting any data, computer data base or information from any such computer, computer system or computer network via any medium, including information or data held or stored in any removable storage medium.

18.3.3. Any employee who is found in breach of this agreement or and provisions of this agreement shall be liable for exemplarily damages to the firm, and the firm can also initiate civil and criminal proceedings against the Employee in case of any breach.

18.4. If the Employee becomes suspects or aware of any unauthorized access to any firm's confidential information by any unauthorized person or third party, or becomes aware of any other security breach relating to the confidential data held by the firm under this Agreement, or in connection with the performance of services shall immediately notify in writing. In case of confidential breach, the firm will immediately take appropriate actions with applicable laws, and shall take appropriate steps to stop the breach. The firm will promptly take civil or criminal action against the confidentiality breach in accordance of the said law and the said Agreement.

19. GOVERNING LAW AND JURISDICTION

19.1. This Agreement is governed by and is to be construed in accordance with the laws of the Republic of India.

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19.2. Any suit, action or proceeding seeking to enforce any provisions of, or based on any matter arising out of or in connection with, this Agreement or the Transactions may be brought in a court sitting in Mumbai, India, and each of the Parties hereby consents to the non-exclusive jurisdiction of such courts.

20. ARBITRATION

Any dispute or claim arising out of or in connection herewith, or the breach, termination or invalidity thereof, shall be settled by The rules and process of Arbitration in accordance with the provisions of the Indian Arbitration & Conciliation Act, 1996, including any amendments thereof. The Arbitration tribunal shall be composed of a sole Arbitrator, and such Arbitrator shall be the Arbitration Tribunal shall consist of a sole Arbitrator mutually appointed by the Parties. The place of Arbitration shall be Mumbai, India and the Arbitration proceedings shall take place in the English Language. The court of law at Mumbai alone shall have the Jurisdiction. The Arbitration award shall be final and binding upon the parties and judgment may be entered thereon, upon the application of either Party to the court having Jurisdiction. Each party shall bear the cost of preparing and presenting its case, and the cost of Arbitration, including fees and expenses of the Arbitrators, shall be shared equally by the Parties unless the award otherwise provides.

21. FORCE MAJEUR

Neither party shall be liable for delay or failure in performing obligations if the delay or failure resulted from circumstances beyond its reasonable control including but not limited to: acts of God, governmental act, flood, fire, explosion, accident, civil commotion, and impossibility of obtaining materials.

The party whose performance is affected by Force Majeure shall upon becoming aware of same give notice forthwith in writing to the other party, together with documentary evidence, and shall use all reasonable endeavours to resolve the condition or to provide temporary workarounds or alternative solutions.

22. NOTICES

Any notices or communications to be given under this Agreement shall be in writing and shall be deemed to have been duly given to a Party upon delivery by registered post and

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E- mail to such party at the following addresses given herein below or at such other address as such Party may later notify in writing:

22.1 If to the Employee, at the following mail address.

Swan Capital

Address: 2nd Floor, Block 28, Tree Building, Raghuvanshi Mills Compound, Lower Parel West, Mumbai, Maharashtra, 400013

E-mail: hr@qodeinvest.com

Caleb Felix

Address: A-303 Rachaita Aarambh, Near Udipi Hotel & Charbhuja jewellers, Aarey Road, Goregaon (East) Mumbai 400063.,, ,India

The parties shall inform the other of any change in address and facsimile address.

23. WAIVER

No failure to exercise and no delay in exercising on the part of either party of any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any right, power or privilege preclude the enforcement of any other right, power or privilege nor shall the waiver of any breach of any provision herein be taken or held to be a waiver of any subsequent breach of any such provision or be a waiver of the provision itself. Any waiver to be effective must be in writing.

24. ENTIRE AGREEMENT

This Agreement represents the entire Agreement between the Parties and shall supersede any previous Agreement or understanding between all or any of the Parties in relation to all or any such matter and the Parties confirm that the whole of their negotiations and intentions have been included herein within the context of expressing clearly the requirements of the Parties. This agreement shall be executed simultaneously in any number of counterparts, each of which shall be deemed to be an original, but all of which together shall constitute one instrument.

25. SEVERABILITY

If any provision in this Agreement is declared invalid or unenforceable in any respect, the Parties agree that such invalidity or unenforceability shall not affect the validity of the

remaining provisions of this Agreement and further agree to substitute the invalid provision as closely as possible.

IN WITNESS WHEREOF, the parties hereto have set and subscribed their respective hands and seals to writing this day and year first herein above written.
For the firm

By:	Caleb Felix	By:	Karan Salecha
Designation:	Junior Software Developer	Designation:	Partner
Signature:		Signature:	

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ANNEXURE-A

NON-DISCLOSURE AGREEMENT

Note: This Annexure has to be mandatorily signed by the Employee along with the Employment Agreement.

This Agreement made on this 20 Mar, 2026

By and Between

Swan Capital, a firm duly incorporated under the provisions of Partnership act 1932, bearing GST Identification Number: 27ADEFS1145N1ZS and having its Registered office in 203,Floor-2 Hamam House, Hamam House Road , Ambalal Doshi Marg , Bombay Stock Exchange , Mumbai State: Maharashtra PIN Code: 400001 and Operational Office Address in ,2nd Floor, Block 28, Tree Building, Raghuvanshi Mills Compound, Lower Parel West, Mumbai, Maharashtra, 400013.(hereinafter referred to as **"firm"** " (which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors-in-business, affiliates and assigns) of the **FIRST PART;**

And

Caleb Felix presently residing at A-303 Rachaita Aarambh, Near Udipi Hotel & Charbhuja jewellers, Aarey Road, Goregaon (East) Mumbai 400063.,, ,India (hereinafter referred to as the "Employee" (which expression shall, unless it be repugnant to the subject context or meaning thereof, include his successors, legal heir, executors and assignees) of the OTHER PART.

THE firm and the **EMPLOYEE** shall herein after be referred to as such or collectively as **"Parties"** and individually as the **"Party".**

WHEREAS,

The firm is engaged in the business of (A) providing quantitative research-driven investment strategies, portfolio management services, and advisory solutions, with a focus on data analytics, algorithmic models, and systematic trading frameworks across multiple asset classes (B) such other related business activities as may be carried out by the firm during the term of the Agreement ("Business").

Based on the disclosures and representations made by **The Employee**, including, but not limited to, academic education, background and work experience, the firm desires to

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engage the Employee; and the Employee desires employment at the firm; upon the terms and conditions obtained in this Agreement and the firm's Policies (as defined hereinafter). The firm procures information from time to time from their vast exchange network and asserts that such information is highly confidential and is a valuable, special, and unique asset of the firm. Hence, as a condition precedent to commencement of employment, the firm requires the Employee to maintain confidentiality of the information to be shared with her under such terms and conditions provided herein below:

IN CONSIDERATION OF and as a condition of, The firm employing the Employee and the firm providing the Confidential Information to the Employee in addition to other valuable consideration, the receipt and sufficiency of which consideration is hereby acknowledged, the parties to this Agreement agree as follows:

CONFIDENTIALITY

The firm has explained to the Employee the sensitivity, the criticality and the importance of the information procured by the firm and the Parties have mutually agreed for the following:

1.1 The Employee undertakes and confirms that the confidential information including but not limited to software and software products, which is provided by the firm or its affiliates whether or not marked confidential through Personal Data or otherwise is at all times to be considered confidential and proprietary to the firm and the Employee shall not use such Confidential Information other than for the discharge of his/her Services under the terms of the Employment Agreement or as authorized by the firm. The Employee shall not disclose, publish or otherwise reveal any of the information received from the firm whether or not marked confidential to any other party whatsoever.

1.2 To the extent practical, the firm shall furnish its confidential Information in documentary or tangible form marked as "**Confidential**". However, if disclosure of confidential Information is in non-documentary form, or if the disclosure is first made orally or by visual inspection, the firm shall have the right to confirm in writing the fact and general nature of such disclosure within thirty days after such disclosure is made.

1.3 Confidential Information furnished in tangible form shall not be duplicated by the Employee. Upon a request made by the firm, the Employee shall return all the Confidential

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Information received in written or tangible form, including copies, or reproductions containing such confidential Information, within ten (10) days of such request.

1.4 The Employee agrees that all files, letters, e-mail, correspondence, memoranda, reports, or any other data, drawings, program listings, or other information stored in laptop, computer, hard disc, or any other electronic devices, or other written form, or any other person, which come into his/her custody or possession, shall be and are the exclusive property of the firm to be used by the Employee only in the performance of his/her Services for the firm. All such materials or copies thereof and all tangible property of the firm in the custody or possession of the Employee shall be promptly delivered to the firm upon a request by the firm. After such delivery the Employee shall not refrain any such materials or copies thereof or any such tangible property. If found under any possession, strict legal action will be taken against the Employee.

1.5 The Employee shall take reasonable security precautions, at least as significant as the precautions it takes to protect his/her own confidential Information, to keep confidential the information.

EXCEPTIONS:

For the purpose of this Agreement, the Confidential Information shall not include any information:

2.1 Which becomes, at a later date, available to the general public through no fault of Employee and then only after the later date;

2.2 Which the Employee can demonstrate (i) was in its possession before receipt of the information from the firm or (ii) was developed independently by Employee without reference to the Confidential Information provided by the firm

2.3 Which is disclosed to Employee without restriction on disclosure by a third party who has the lawful right to disclose such information, or;

2.4 Which is required to be disclosed in order to comply with applicable laws or government regulations, provided that prior written notice is given to the firm of such required disclosure and the Employee takes lawful actions to avoid and/or minimize the degree of such disclosure.

Important: While Qode is our brand, your employment is with Swan Capital, the registered entity.

DUTY OF NON-DISCLOSURE

3.1 In consideration of the disclosure of the information, the Employee shall keep the information confidential, and without the prior written consent of the firm, the confidentiality information shall not be disclosed or used by the Employee other than in connection with the business of the firm or as otherwise authorized by the firm. The Employee agrees not to use, disassemble or reverse engineer any information disclosed to or received by the Employee.

3.2 The Employee understands, confirms and acknowledges that in the event of any breach of confidentiality, the firm shall initiate criminal and civil legal proceedings against him/her, the cost and consequences of which he/she shall solely be responsible.

The duty of non-disclosure and confidentiality shall remain in force till such information becomes, at a later date, available to the general public through no fault of Employee and then only after the later date.

TERMINATION

4.1 Upon termination of the Employment Agreement, the Employee shall return to the firm all Confidential Information and technical materials furnished to the employee by the firm. The Employee, if instructed by the firm, shall destroy all such materials including copies, data, hard disc held by him and/or any documents, files or information held by him/her for or on behalf of the firm.

4.2 The employee shall be bound by this non-disclosure agreement signed by him even after the termination of his/her services.

TIME PERIOD

This Agreement is effective on the effective Date and shall remain in effect throughout the employment tenure of the Employee. The Employee has the duty to hold the Confidential Information in confidence, shall remain in effect until the Confidential Information no longer qualifies as a trade secret or until the Confidential information is open to Public.

BREACH OF CONFIDENTIALITY

The Employee agrees and acknowledges that any disclosure of any "**Confidential Information"** prohibited herein directly or indirectly, or any breach of provisions herein

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may result in irreparable injury and damage to the firm, which shall not be adequately compensable in monetary damages, that the firm will have no adequate remedy at law thereof, and that the firm may, in addition to all other remedies available to it at law or in equity, obtain such preliminary, temporary or permanent mandatory or restraining injunctions, orders or decrees as may be necessary to protect the firm against, or on account of, any breach by the Employee/ex-Employee of the provisions contained herein, and Employee agrees to reimburse the reasonable legal fees and other costs incurred by the firm in enforcing the provisions of the proposed transaction along with penalty.

ENTIRE AGREEMENT

7.1. This Agreement represents the entire Agreement between the Parties and shall supersede any previous Agreement or understanding between all or any of the Parties in relation to all or any such matter and the Parties confirm that the whole of their negotiations and intentions have been included herein within the context of expressing clearly the requirements of the Parties.

7.2. This Agreement has been executed by the Parties hereto of their own free will without any coercion or undue influence and shall be valid and legally binding on both the parties from the above-mentioned date.

MISCELLANEOUS

8.1.This Agreement shall be binding upon the Employee's heirs, executors and administrators and shall inure to the benefit of the firm and its successors and assigns.

8.2. No delay or omission by the firm in exercising any right under this Agreement shall operate as a waiver of that or any other right. A waiver or consent given by the firm on any one occasion is effective only in that instance and shall not be constructed as a bar to or waiver of any right on any other occasion.

8.3. This Agreement has been entered into personally with the Employee and shall not be entitled to transfer or assign in any way this Agreement or any part thereof of the benefit or entitlement if any, under this Agreement

8.4. The Employee expressly consents to be bound by the provisions of this Agreement for the benefit of the firm or any subsidiary or affiliate thereof to who's the Employee may

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be transferred without the necessity that this Agreement Be Re-signed at the time of such transfer.

8.5. The restrictions contained in this Agreement are necessary for the protection of the business and goodwill of the firm and are considered by the Employee to be reasonable for such purpose. The Employee agrees that any breach of this Agreement is likely to cause the firm substantial and irrevocable and irreparable damage which cannot be compensated in monetary terms alone and therefore, in the event of any such breach, the Employee agrees that the firm, in addition to such other remedies which may be available, shall be entitled to specific performance and other injunctive relief.

I HAVE READ THIS AGREEMENT CAREFULLY AND UNDERSTAND ITS TERMS.

SIGNED AND DELIVERED

For the firm

By:	Caleb Felix	By:	Karan Salecha
Designation:	Junior Software Developer	Designation:	Partner
Signature:		Signature:	

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